

5. Appointment of Chief Commissioner of Railway Safety and Commissioners of Railway Safety. - The Central Government may appoint a person to be the Chief Commissioner of Railway Safety and such other persons as it may consider necessary to be the Commissioner of Railway Safety.

6. Duties of Commissioner - The Commissioner shall -

a) inspect any railway with a view to determine whether it is fit to be opened for the public carriage of passengers and report thereon to the Central Government as required by or under Railway Act;

b) make such periodical or other inspections of any railway or of any rolling stock used thereon as the Central Government may direct;

(c) make an enquiry under this Act into the cause of any accident on a railway; and

(d) discharge such other duties as are conferred on him by or under this Act.

7. Powers of Commissioner - Subject to the control of the Central Government, the Commissioner, whenever it is necessary so to do for any of the purposes of this Act, may-

(a) enter upon and inspect any railway or any rolling stock used thereon;

(b) by order in writing addressed to a railway administration, require the attendance before him of any railway servant and to require answers or returns to such inquiries as he thinks fit to make from such railway servant or from the railway administration; and

(c) require the production of any book, document or material object belonging to or in the possession or control of any railway administration which appears to him to be necessary to inspect.

8. Commissioner to be Public Servant - The Commissioner shall be deemed to be a public servant within the meaning of Sec. 21 of the Indian Penal Code (45 of 1860).

9. Facilities to be afforded to Commissioner - A railway administration shall afford to the Commissioner all reasonable facilities for the discharge of the duties or for the exercise of the powers imposed or conferred on him by or under this Act.

10. Annual report of Commissioners - The Chief Commissioner of Railway Safety shall prepare in each financial year an annual report giving a full

account of the activities of the Commissioner during the financial year immediately preceding the financial year in which such report is prepared and forward, before such date as may be specified by the Central Government, copies thereof to the Central Government, and that Government shall cause that report to be laid, as soon as may be, after its receipt before each house of parliament.

CHAPTER IV

CONSTRUCTION AND MAINTENANCE OF WORKS

11. Power of railway administration to execute all necessary works -

Notwithstanding anything contained in any other law for the time being in force, but subject to the provisions of this Act and the provisions of any law for the acquisition of land for a public purpose or for the companies, and subject also, in the case of a non-government railway, to the provisions of any contract between the Non-Government railway and the Central Government, a railway administration may, for the purpose of constructing or maintaining a railway -

(a) make a construct in or upon, across, under or over any lands, or any street, hills, valleys, roads, railway, tramways, or any rivers, canals, brooks, streams or other waters, or any drains, water pipes, gas pipes, oil-pipes, sewers, electric supply lines, or telegraph lines, such temporary or permanent inclined - planes, bridges, tunnels, culverts, embankments, aqueducts, roads, lines of railways, passages, conduits, drains, piers, cutting and fences, in-take wells, tube wells, dams, river training and protection works as it thinks proper;

(b) alter the course of any river, brooks, streams or other water courses, for the purpose of constructing and maintenance tunnels, bridges, passages, or other works over or under them and divert or alter either temporarily or permanently, the course of any river, brooks, streams, or other water courses or any roads, streets or ways, or raise or sink the level thereof, in order to carry them more conveniently over or under or by the side of the railway;

(c) make drains or conduits into, through or under any lands adjoining the railway for the purpose of conveying water from or to the railway;

(d) erect and construct such houses, ware houses, offices and other buildings, and such yards, stations, wharves, engines, machinery apparatus and other works and the conveniences as the railway administration thinks proper;

(e) alter, repair or discontinue such buildings, works and convenience as aforesaid or any of them and substitute other in their stead;